

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN  
COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)**

1. I recommend that the US Embassy use other than full and open competition for the acquisition: *Chiller Controller Upgrade by Multistack LLC in the amount of \$19,604.50*
2. Nature and/or description of the action being approved.  
*To upgrade the Chiller's Master Controller from pCO2 to pCO5 controllers for four modules on Multistack. The Master Controller pCO2 boards are no longer available, a conversion kit to pCO5 controller has been recommended by Multistack.LLC*

3. A description of the supplies or services required to meet the agency's needs.

*Multistack LLC shall perform the following activities to make the chiller operational:*

***Controller Upgrade Process***

- a. Recover the refrigerant from the system.*
- b. Install TeeAssy-27 on both the high-pressure and low-pressure sides of the refrigerant circuit.*
- c. Install new pressure transducers on the TeeAssy-27.*
- d. Vacuum the refrigerant circuit to remove non-condensable and moisture.*
- e. Recharge the system using the recovered refrigerant, weighing it to ensure proper charge.*  
*Note: Refrigerant is not included in the pricing of this proposal. If additional refrigerant is needed to top off the module, the site will be responsible for providing new refrigerant.*
- f. Replace the existing pCO2 controllers with new pCO5 controllers.*

***System Programming & Testing***

- a. Program system variables in the master controller.*
- b. Verify the proper operation of each module.*
- c. Take and record operational readings once all modules are back online.*

4. An identification of the statutory authority permitting competition other than full and open.

*Only One Responsible Source (FAR 6.302-1). Sole source (where only one responsible source and no other supplies or services will satisfy agency requirements) under 41 USC 253(c)(1). The acquisition does not exceed the simplified acquisition threshold (\$150,000).*

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

*The Airstack Chiller was manufactured by Multistack LLC and has installed the unit at post in 2009 with contract no. OBO-69 Job#202-J023. The system and parts are proprietary of Multistack LLC, of which they will send their experts to resolve the issue with the controller. Moreso, OBO/ORSC-EAP has recommended and approved the service of Multistack, LLC*

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOpps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).

*As per item 5*

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

*The Contracting Officer determined that the anticipated cost to the Government in the case of this purchase will be fair and reasonable. There is no other vendor who can provide support on this proprietary product. This company is the one who manufactured, installed, and commissioned the Multistack Chiller at post.*

8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

*Not applicable.*

9. Any other facts supporting the use of other than full and open competition.

*Not applicable.*

10. A listing of sources, if any that expressed, in writing, an interest in the acquisition.

*Not applicable.*

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

*Not applicable.*

## REQUIREMENTS OFFICE

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

Eclipse, Richard (EclipseRB@state.gov)  
04/23/2025 02:49 GMT



\_\_\_\_\_  
Date

\_\_\_\_\_  
Name: **Richard B. Eclipse**  
Position: **Facility Manager**

## CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

Pritchett, Christopher (PritchettCD@state.gov)  
04/23/2025 03:07 GMT



\_\_\_\_\_  
Date

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Name: **CHRISTOPHER D. PRITCHETT**  
**Contracting Officer**